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CRIMINAL SPEECH AND THE FIRST AMENDMENT

BENJAMIN MEANS*

Lawrence Horn hired a contract killer to murder his son and his ex-wife because he stood to inherit two million dollars.[1] The hit man took the assignment, strangled the boy (who was confined to a wheelchair), and shot his mother and his nurse, following detailed instructions offered in a manual[2] he had obtained.[3] The hit man was soon caught, perhaps because he neglected to follow some of the book's instructions for evading detection.[4] After learning that the murderer had relied upon a "how-to" book, the victims' families sued the publisher, Paladin Enterprises, for wrongful death under an aiding and abetting theory.[5] Plaintiffs argued, in essence, that the publisher should be held responsible for the dire consequences of the speech it had published and made available to the public.[6] Paladin Enterprises moved for summary judgment on free speech grounds, stipulating for purposes of the motion that it had intended some readers to rely on *Hit Man* to commit crimes, but contending that the First Amendment was an absolute bar to both

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1. Rice v. Paladin Enters., Inc., 128 F.3d 233, 239 (4th Cir. 1997).

2. REX FERAL, HIT MAN: A TECHNICAL MANUAL FOR INDEPENDENT CONTRACTORS (1983). A well-known First Amendment scholar who represented the plaintiffs described the book as follows:

> On one level, the book is pure recipe—a detailed, step-by-step technical explanation of how to go into the business of becoming a professional hit man, plan murders, and carry them out. On another level, the book is incitement and exhortation, written in tones that incessantly cajole and encourage and embolden, propelling the would-be assassin to take the plunge and become a *real* man, a nihilistic, efficient, cold-blooded murdering machine.

ROD SMOLLA, DELIBERATE INTENT: A LAWYER TELLS THE TRUE STORY OF MURDER BY THE BOOK ix (1999).

3. *Paladin*, 128 F.3d at 239, 241–42 (citing the parties' joint stipulation of facts).

4. *Id.* at 241.

5. *Id.*

6. *Id.*

criminal prosecution and civil liability.[7]

In deciding the defendant's motion, the district court and the appellate court sharply disagreed, not about the content of free speech protection, but about whether the First Amendment applied in the first place.[8] The district court found, as a matter of law, that the publisher's distribution of *Hit Man* was protected under the First Amendment.[9] The Fourth Circuit disagreed, holding that illegal acts receive no First Amendment protection, even if they involve speech, and that the stipulated facts suggested the presence of such illegality.[10] Hence, at trial plaintiffs would only have to establish the standard elements of aiding and abetting, and defendants could not invoke the First Amendment as a defense.[11]

The *Hit Man* case highlights an unresolved tension in the law. On the one hand, it is black-letter law that the First Amendment prohibits governmental sanctioning of speech unless that speech incites "imminent lawless action and is likely to incite . . . such action."[12] On the other hand, courts hold that crime receives no free speech protection merely because it is in the form of speech.[13] These positions are not

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7. *Id.* at 242.

8. *See id.* at 250.

9. *See* Rice v. Paladin Enters., Inc., 940 F. Supp. 836, 849 (D. Md. 1996) ("[H]owever loathsome one characterizes the publication, *Hit Man* simply does not fall within the parameters of any of the recognized exceptions to the general First Amendment principles of freedom of speech.").

10. *See Paladin*, 128 F.3d at 242–43. The court held:

> Because long-established caselaw [sic] provides that speech—even speech by the press—that constitutes criminal aiding and abetting does not enjoy the protection of the First Amendment, and because we are convinced that such case law is both correct and equally applicable to speech that constitutes civil aiding and abetting of criminal conduct . . . we hold . . . that the First Amendment does not pose a bar to finding that Paladin is civilly liable as an aider and abetter of Perry's triple contract murder.

Id.

11. *Id.* On the eve of trial, Paladin Press agreed to a multi-million-dollar settlement. *See* SMOLLA, *supra* note 2, at 272.

12. Brandenburg v. Ohio, 395 U.S. 444, 447 (1969) (per curiam). The court stated:

> [T]he constitutional guarantees of free speech and free press do not permit a State to forbid or proscribe advocacy of the use of force or of law violation except where such advocacy is directed to inciting or producing imminent lawless action and is likely to incite or produce such action.

Id.

13. *See, e.g.*, Giboney v. Empire Storage & Ice Co., 336 U.S. 490, 502 (1949) (finding on

necessarily incompatible,[14] but the distinction between speech and crime remains thinly reasoned and poorly understood.[15] As a result, the scope of the freedom of speech is not governed by any consistent view of the nature of expression and is dangerously arbitrary.[16]

This Article proposes a more coherent theoretical regime for distinguishing speech and crime—an approach that cuts across the areas of criminal speech and symbolic speech. The aim is to incorporate well established law and scholarship concerning the distinction between conduct and expression into a broader theoretical framework. Within this framework, the threshold distinction between crime and speech can better be understood as a version of the familiar distinction that courts rely upon when seeking to identify whether conduct (such as marching or nude dancing) is sufficiently expressive so as to merit First Amendment protection. By framing the distinction between speech and crime in terms of the broad principles identified by courts and scholars

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the facts that picketing with placards constituted unlawful restraint of trade, despite the fact "that the agreements and course of conduct here were . . . brought about through speaking or writing"). The Court stated that "it has never been deemed an abridgment of freedom of speech or press to make a course of conduct illegal merely because the conduct was in part initiated, evidenced, or carried out by means of language, either spoken, written, or printed." *Id.*

14. *Cf.* Robert Post, *Recuperating First Amendment Doctrine*, 47 STAN. L. REV. 1249, 1250 (1995) ("Like any legal provision, the [First] Amendment must contain threshold conditions that specify when its particular doctrines and values will be activated and applied."). Applying the *Brandenburg* test to all speech would produce impossible results. Professor Van Alstyne accurately describes this justification of limitations on the extent of the First Amendment as animated by the "irresistible counterexample"—"[t]he necessary consequence is to concede that there must be some degree of moderation contemplated by the first amendment [sic] despite first impressions to the contrary." William Van Alstyne, *A Graphic Review of the Free Speech Clause*, 70 CAL. L. REV. 107, 113–14 (1982) (citing Justice Oliver Wendell Holmes' famous example of shouting "fire" in a crowded movie theater).

15. Such problems are not unique to one area of First Amendment jurisprudence. *See, e.g.*, Post, *supra* note 14, at 1249–50 ("Although the pattern of the Court's recent First Amendment decisions may well be (roughly) defensible, contemporary First Amendment doctrine is nevertheless striking chiefly for its superficiality, its internal incoherence, its distressing failure to facilitate constructive judicial engagement with significant contemporary social issues connected with freedom of speech.").

16. *See* THOMAS I. EMERSON, THE SYSTEM OF FREEDOM OF EXPRESSION 10 (1970):

> A system of free expression can be successful only when it rests upon the strongest possible commitment to the positive right and the narrowest possible basis for exceptions. And any such exceptions must be clear-cut, precise, and readily controlled. Otherwise the forces that press toward restriction will break through the openings, and freedom of expression will become the exception and suppression the rule.

Id.

in a context where similar First Amendment goals are at stake,[17] this Article seeks to provide an approach to distinguishing speech and crime that is both intelligible and workable.

To be clear, the aim is not simply to replace one set of formalistic categories with another, but to articulate a method of analysis. Nonetheless, this discussion will use the terms "conduct" or "action," and "speech" or "expression" as shorthand for the outcomes generated by applying the appropriate principles to distinguish verbal or nonverbal acts that do not merit First Amendment coverage from those that do. Other scholars have proposed various kinds of speech/conduct or expression/action distinctions.[18] This version differs, however, first in its insistence on the importance of separating questions of scope from questions of content; unless courts apply the First Amendment, and do not avoid it where it seems inconvenient, the content of free speech protections is not even worth talking about. Second, a method of analysis is developed in light of established case law and scholarship concerning symbolic speech, contending that criminal speech and symbolic speech should be thought of as two aspects of the same whole. Thus, the expression/action idea is used to connect two areas of the First Amendment that previously have not been linked explicitly. Finally, unlike Professor Greenawalt, who deliberately eschews engaging linguistic philosophy concepts for fear that they lead to "significant line-drawing problems,"[19] this Article attempts to show that a practical approach to the speech/conduct distinction can, in fact, be consistent with the view that speech-acts are not distinguishable in kind from other acts.[20]

Part I argues that the distinction between speech and crime is far from self-evident, and as a consequence, courts have broad discretion to characterize verbal acts as speech or as crime. First Amendment law,

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17. Evidence law, for instance, also distinguishes between conduct and speech in certain hearsay contexts, but the purposes of evidence law and the First Amendment are not closely aligned.

18. For example, Professor Emerson contends that the expression/action distinction should be the organizing principle of First Amendment law. *See* EMERSON, *supra* note 16, at 17. Kent Greenawalt in part adopts that view, but proposes that utterances be evaluated in terms of whether they are "situation-altering," and contends that the expression/action distinction is important but not "*the* central key to First Amendment adjudication." KENT GREENAWALT, SPEECH, CRIME, AND THE USES OF LANGUAGE 229 (1989).

19. GREENAWALT, *supra* note 18, at 58.

20. For a good introduction to linguistic philosophy, see JOHN L. AUSTIN, HOW TO DO THINGS WITH WORDS, (J.D. Urmson & Marina Sbisa eds., 1975); JOHN R. SEARLE, SPEECH ACTS, AN ESSAY IN THE PHILOSOPHY OF LANGUAGE (1969).

however robust in principle, means little if judges can avoid it altogether. As *Hit Man* and other cases illustrate, outcomes often hinge upon the unelaborated threshold determination of whether the First Amendment applies at all.[21]

Part II identifies tests traditionally employed to identify when conduct should be treated as speech and incorporates them into a broader theoretical regime that also addresses when speech should be treated as conduct. The task of identifying physical acts that merit First Amendment protection is therefore linked to the task of identifying verbal acts that do not. Part III defends this method of analysis against two contradictory objections: (1) that speech is completely distinct from conduct so that any attempt to link the two is disingenuous; and (2) that speech is completely indistinguishable from conduct so that any attempt to separate the two is disingenuous.

Part IV demonstrates the utility of the model developed in Part II by using it to reexamine the cases discussed in Part I. While the principles gleaned from the cases and scholarship addressing symbolic speech do not provide a mechanical test for identifying criminal speech, they do offer a general framework for analysis that can be refined. By engaging in such an analysis, courts will at least ensure that the outcome determinative decision of whether to apply the First Amendment is explained adequately, thus reducing the risk that the crime exception to the First Amendment will undermine the American commitment to freedom of speech.

I. CURRENT DOCTRINE

The existing regime for distinguishing speech and crime depends upon an implicit assumption that speech and crime are self-evident and mutually exclusive concepts. Unfortunately, the situation is more complicated, and the lack of a coherent theory behind those formalistic categories has led to unsatisfying results.

A. Brandenburg

First Amendment doctrine concerning illegal advocacy requires a strong showing of imminence. Under *Brandenburg v. Ohio*,[22] the government may not "forbid or proscribe advocacy of the use of force or

21. Rice v. Paladin Enters., Inc., 128 F.3d 233, 250 (4th Cir. 1997). If the First Amendment applies, speech may still ultimately be regulated. However, government regulation will be subjected to far stricter scrutiny.

22. 395 U.S. 444 (1969) (per curiam).

of law violation except where such advocacy is directed to inciting or producing imminent lawless action and is likely to incite or produce such action."[23]

Applying the *Brandenburg* test, the Supreme Court overturned the conviction of a defendant accused of treason who, in declaring his opposition to the draft, exclaimed that "[i]f they ever make me carry a rifle the first man I want to get in my sights is L.B.J."[24] The Court found that the speech was mere hyperbole.[25] Similarly, in *Hess v. Indiana*,[26] the Court struck down the conviction of a demonstrator who shouted, "[w]e'll take the fucking street later," declaring that the lawlessness advocated was not sufficiently immediate, because "later" was not "imminent."[27] Likewise, a NAACP organizer was not liable for inciting violence when he addressed a crowd as follows: "If we catch any of you going in any of them racist stores, we're gonna break your damn neck."[28]

In short, it is very difficult to impose liability on speech, even speech that advocates crime, if it falls within the scope of the First Amendment as set forth in *Brandenburg*.[29] For that reason, a court faced with speech

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23. *Id.* at 447. The *Brandenburg* test is itself a way of distinguishing between speech that is best thought of as speech, and speech that is more like conduct and thus not shielded by the First Amendment. *See* Amy Adler, *Inverting the First Amendment*, 149 U. PA. L. REV. 921, 975–76 (2001) (stating that "sometimes, speech may erupt into illegal conduct in a way so immediate that the two merge to become one and the same"). "This is the problem that gripped the Court for many years in the subversive advocacy cases and that led to the *Brandenburg* 'incitement to imminent lawless action' test." *Id.* at 967. However, as previously noted, the Court has also stated that criminal speech receives no First Amendment protection. It is apparent, therefore, that the Court also has in mind the exclusion from free speech of at least some utterances that might not satisfy the exacting *Brandenburg* test.

24. Watts v. United States, 394 U.S. 705, 706, 708 (1969) (per curiam).

25. *Id.* at 708.

26. 414 U.S. 105 (1973).

27. *Id.* at 107–09.

28. NAACP v. Claiborne Hardware Co., 458 U.S. 886, 902 (1982).

29. This is not to say that the *Brandenburg* test is insuperable. Brandenburg v. Ohio, 395 U.S. 444, 447 (1969) (per curiam). On occasion, a defendant's conduct will be egregious enough to allow for liability despite the initial availability of a First Amendment defense. *See, e.g.*, California v. Rubin, 158 Cal. Rptr. 488 (Ct. App. 1979). At a press conference to protest a planned Nazi march in Skokie, Illinois, a member of the Jewish Defense League made the following statement:

> We are offering five hundred dollars, that I have in my hand, to any member of the community, be he Gentile or Jewish, who kills, maims, or seriously injures a member of the American Nazi Party.... And if they bring us the ears, we'll make it a thousand dollars. The fact of the matter is, that we're deadly serious. This is not said in jest, we are deadly serious.

Id. at 488–89., The district court held that the speech was mere hyperbole and *per se*

it finds intolerable may be sorely tempted to find a way to escape free speech strictures.

B. The Crime Exception

The Supreme Court ostensibly allows content-based restrictions only for speech that falls into one of a handful of narrow exceptions: fighting words,[30] obscenity,[31] commercial speech,[32] or incitement to imminent lawless activity.[33] In reality, courts regulate a great deal more speech by excluding it from the scope of the First Amendment. Thus, despite the strong protection afforded free speech under the First Amendment, courts can punish some disfavored speech by characterizing it as crime, steeling to action,[34] or "speech . . . brigaded with action."[35]

While the Supreme Court has made clear that "illegal advocacy" can only be sanctioned in very limited circumstances,[36] the Court has made it equally clear that crime does not receive First Amendment protection merely because it is in the guise of speech.[37] Even Justice Douglas, a staunch supporter of free speech, acknowledged that speech is "subject to regulation" where "brigaded with action."[38] Consequently, First

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protected, but a divided court of appeals reversed and held that because the *Brandenburg* standard could be satisfied, the defendant would have to stand trial. *See id.* at 493.

30. *See* Chaplinsky v. New Hampshire, 315 U.S. 568, 573 (1942).

31. *See* Roth v. United States, 354 U.S. 476, 485–86 (1957); *see also* New York v. Ferber, 458 U.S. 747 (1982) (child pornography).

32. *See* Virginia Pharmacy Bd. v. Virginia Citizens Consumer Council, Inc., 425 U.S. 748, 785 (1976) (disapproving earlier Supreme Court cases which entirely excluded commercial speech from First Amendment protection but allowing regulation of "false and misleading" commercial speech).

33. *See* Brandenburg v. Ohio, 395 U.S. 444, 447 (1969) (per curiam).

34. *Id.* at 448.

35. *Id.* at 456 (Douglas, J., concurring); Speiser v. Randall, 357 U.S. 513, 536–37 (1958) (Douglas, J., concurring).

36. *Brandenburg*, 395 U.S. at 447.

37. *See* Giboney v. Empire Storage & Ice Co., 336 U.S. 490, 502 (1949). The Model Penal Code includes at least twenty-one crimes that can be committed through speech. *See* GREENAWALT, *supra* note 18, at 6–7. Those include, for example: (1) reaching an agreement with someone else to engage in criminal conduct, MODEL PENAL CODE § 5.03(1) (1962) (criminal conspiracy); (2) offering to pay or receive a bribe, *id.* §§ 248.8, 240.1, 240.3-240.7; and (3) threatening another person with severe harm, *id.* § 211.3 (terroristic threats).

38. *See Brandenburg*, 395 U.S. at 456 (Douglas, J., concurring). Justice Douglas's formulation broadly foreshadows the argument here by casting the distinction between speech and crime in terms of conduct. No analysis supports his phrase, however, and First Amendment law has never systematically viewed speech and crime through the lens of conduct. Developing the theoretical underpinning of speech as conduct (for example, by linking it to law concerning conduct as expression) permits us to make good use of the speech/conduct distinction rather than employing it as another way to rationalize after the

Amendment protections apply only if a court first decides that the matter before it is speech and not crime.[39]

In many cases, a court can characterize an utterance as either crime or speech as it sees fit, because the decision rests almost entirely within the court's discretion.[40] The practice bears a resemblance to the "escape devices" that courts have employed in other areas of the law—for example, in conflicts of law—to exploit the ambiguity behind apparently rigid legal categories.[41] The court's decision does not follow from

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fact a First Amendment decision that rests on other grounds.

39. *See* Post, *supra* note 14, at 1250. "A court can uphold government regulations on the ground that they need not be evaluated according to First Amendment standards, or it can uphold the same regulations on the quite different ground that, having applied First Amendment standards, the regulations are valid and withstand constitutional scrutiny." *Id.* Therefore, "in order to determine which path of analysis a court should pursue, we must have boundary criteria for deciding when First Amendment standards shall be brought into play." *Id.*

40. Such formal guidance as does exist in separating speech and crime is hopelessly vague. For example, the Model Penal Code's Commentary advises that "[o]ne who uses words as a means to crime . . . does not make a contribution to community discussion that is worthy of protection." MODEL PENAL CODE § 5.02 cmt., 375–76. That formulation sweeps so broadly, however, that it might be understood to include within the definition of crime precisely the sort of advocacy *Brandenburg* means to protect. The phrase, "a means to crime" is nothing more than a restatement of the question: when does speech become so intertwined with crime that it may be regulated, indeed punished, without regard for the protection afforded speech by the First Amendment?

Nor can courts look to academic treatments of the issue for specific guidance. The unfettered discretion courts have to make the threshold determination between speech and crime has gone mostly unrecognized, even though some scholars, perhaps most notably Kent Greenawalt, have addressed the topic. *See*, GREENAWALT, *supra* note 18. Greenawalt's book is a nuanced discussion of the content and scope of the freedom of speech, analyzing the level of protection courts should afford different kinds of speech acts and arguing that the level should vary based upon numerous factors. *Id.* Greenawalt's analysis, cogent as it is, does not really focus upon the crucial first step, when a court must decide whether to apply the First Amendment. *Id.* This Article seeks to fill that gap. Thus, this Article takes as background the strong protection afforded advocacy of illegality by *Brandenburg*, and does not address subtleties in the way *Brandenburg* might be applied in different contexts. For that reason, the locus of inquiry here is narrower than that of other scholars who debate how much freedom of speech the First Amendment requires, depending upon the connection between speech and crime, across a great variety of situations.

41. *See* LEA BRILMAYER, CONFLICT OF LAWS 28 (2d ed. 1995) (stating that escape devices "threatened the [formal choice of law] goals of uniformity and predictability"); *see also* Sun Oil Co. v. Wortman, 486 U.S. 717, 728 n.2 (1988) (acknowledging degree to which formal choice of law rules are undercut by the availability of escape devices). A court employs an escape device when it decides a case for unstated reasons and then manipulates legal rules to justify the result. *See id.* The court's articulation of the law masks the concerns that actually motivated its decision. *See* ROBERT A. LEFLAR ET AL., AMERICAN CONFLICTS LAW 261 (4th ed. 1986) (noting that escape devices "achieve results that must be justified, if at all, by other real reasons"). Escape devices may be employed where, for example, a court's actual reasoning is entirely foreclosed by existing law, insufficient to sustain the desired result,

rigorous analysis of whether the subject activity is speech; rather, the court's sense of whether the subject activity is properly regulable dictates whether it is labeled speech. The critical issue—why the court treated the speech as speech or as crime—remains unexplained.

It is not necessary to assume that courts deliberately engage in escape devices. A court may simply assume that the law supports its intuitive sense of a just outcome and reach for the precedent that fits with that intuition, without considering that the law might also support a contrary conclusion. Nor are courts always wrong when they characterize a verbal act as crime outside the scope of the First Amendment.[42] However, to the extent courts base the decision whether to apply free speech protection on considerations that would not be relevant to First Amendment analysis, they evade the constraints designed to protect unpopular speech. Moreover, even perfectly defensible but unarticulated decisions fail to delineate the boundaries of a properly conceived freedom of speech. Courts cannot answer the question—when does speech connected to crime nonetheless fall within the compass of the First Amendment—unless they first ask it.

C. *Case Law*

In light of the confused state of the law concerning the boundary between speech and crime, it is not surprising that the district court and the appellate court in the *Hit Man* case arrived at contrary conclusions as to whether the First Amendment applied, each court invoking one of the two overlapping doctrines.[43] As the *Hit Man* case and other cases illustrate, the lack of a clear theoretical underpinning for the distinction between speech and crime leads to troubling and superficial decisions.

1. Hit Man

The *Hit Man* case demonstrates why the threshold determination of whether the First Amendment applies is so often dispositive. The district court concluded that "[t]he First Amendment bars the imposition of civil liability on Paladin unless *Hit Man* falls within one of

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or simply more controversial.

42. For example, it would make no sense for society to treat a ransom note or the bomb threat as free speech, and courts routinely deny First Amendment protection to those who bribe, extort, and threaten. *But cf.* Lyle Denniston, *Absolutism: Unadorned, and Without Apology*, 81 GEO. L.J. 351 (1992) (espousing the view that "no law" means "no law" while acknowledging and accepting the serious harm to society that would follow from such a view).

43. *Compare* Rice v. Paladin Enters., Inc., 940 F. Supp. 836, 840–41 (D. Md. 1996); *with* Rice v. Paladin Enters., Inc., 128 F.3d 233, 267 (4th Cir. 1997).

the well defined and narrowly limited classes of speech that are unprotected by the First Amendment."[44] The court found that "the Defendants must have intended imminent lawless action. In other words, Defendants must have intended that James Perry would go out and murder Mildred Horn, Trevor Horn, and Janice Saunders *immediately*."[45] The plaintiffs could not meet that standard, as few plaintiffs in media distribution cases could.[46] The court's logic carried it from the initial invocation of the First Amendment to the conclusion that the speech must be protected.[47]

The Fourth Circuit reversed, holding that the First Amendment did not apply at all.[48] The court began its analysis by acknowledging the importance of free speech: "[A] right to advocate lawlessness is, almost paradoxically, one of the ultimate safeguards of liberty .... Without the freedom to criticize that which constrains, there is no freedom at all."[49] The court quickly noted, though, that "it is equally well established that speech which, in its effect, is tantamount to legitimately proscribable nonexpressive conduct may itself be legitimately proscribed, punished, or regulated incidentally to the constitutional enforcement of generally applicable statutes."[50] The court supported that maxim with a slippery slope argument: "Were the First Amendment to bar or to limit government regulation of such 'speech brigaded with action,' the government would be powerless to protect the public from countless of even the most pernicious criminal acts and civil wrongs."[51]

What is missing from the Fourth Circuit's decision is an explanation of precisely what allows it to distinguish speech and crime. The court lists obvious examples, such as ransom notes and robbery commands, but does not elaborate.[52] Is the distinction to be drawn simply based upon common sense? One might wonder whether the result in the *Hit Man* case would have been any different if the book instructed the reader in marijuana growing techniques; if the book explained how to

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44. *Paladin*, 940 F. Supp. at 840–41 (citing Chaplinsky v. New Hampshire, 315 U.S. 568 (1942)).

45. *Id.* at 847 (invoking the *Brandenburg* standard).

46. *Id.*

47. *Id.* at 848.

48. *See Paladin*, 128 F.3d at 267.

49. *Id.* at 243.

50. *Id.*

51. *Id.* at 244 (internal citations omitted) (citing various provisions of the Model Penal Code).

52. *Id.* at 252–55.

organize effective civil disobedience to protest globalization; or, to cite a real world example, if it had explained how to break computer encryption.[53]

2. Angel Dust

In *United States v. Barnett*,[54] the issue was drugs, not murder. The Court of Appeals for the Ninth Circuit held that the First Amendment was not a defense to the charge that the defendant had aided and abetted the attempted manufacture of phencyclidine (PCP) by selling written instructions for manufacturing the drug.[55] When Drug Enforcement Administration (DEA) agents executed a search warrant at the home of Donald Eugene Helmsley, he was preparing PCP and reading a paper called "Synthesis of PCP—Preparation of Angel Dust."[56] The agents soon traced the paper to its source, Gary Barnett, whom they caught depositing in the United States mail an envelope containing several documents that explained how to manufacture PCP and other illegal drugs and which also suggested precautionary measures to avoid alerting the DEA.[57] In the district court, Barnett moved to dismiss the case on the ground that he had a First Amendment right to disseminate the material.[58] The district court rejected Barnett's First Amendment defense,[59] and the Ninth Circuit agreed.[60]

The Ninth Circuit first noted that the allegations against Barnett, if proved, would constitute the crime of aiding and abetting.[61] The court defined an abettor as one "'who, with *mens rea*, . . . commands, counsels or otherwise encourages the perpetrator to commit the crime.'"[62] The

53. *See, e.g.*, Bernstein v. United States Dep't of Justice, 176 F.3d 1132, 1141 (9th Cir. 1999) (holding that encryption software in source code form as used by cryptologists to communicate ideas is First Amendment expression); Universal City Studios, Inc. v. Corley, 273 F.3d 429 (2d Cir. 2001); *see also* Siva Vaidhyanathan et al., *The Year in Ideas: An Encyclopedia of Innovations, Conceptual Leaps, Harebrained Schemes, Cultural Tremors & Hindsight Reckonings that Made a Difference in 2001*, *in* THE NEW YORK TIMES MAGAZINE, Dec. 9, 2001, at 100 (discussing idea that "Software is Free Speech," but not classifying it as "conceptual leap" or "harebrained scheme").

54. 667 F.2d 835 (9th Cir. 1982).

55. *Id.* at 841.

56. *Id.* at 838.

57. *Id.* at 839.

58. *Id.* at 837–38.

59. United States v. Barnett, 507 F. Supp. 670, 672 (E.D. Cal. 1981).

60. *Barnett*, 667 F.2d at 841–43.

61. *Id.* at 841; *see* 18 U.S.C. § 2 (2000) (anyone who "aids, abets, counsels, commands, induces or procures" a crime against the United States "is punishable as a principal").

62. *Barnett*, 667 F.2d at 841 (quoting PERKINS, CRIMINAL LAW 645 (2d ed. 1969)).

court rejected any requirement that the crime happen in close temporal proximity to the counsel provided by the alleged aider and abettor: "The fact that the . . . encouragement is not acted upon for long periods of time does not break the actual connection between the commission of the crime and the advice to commit it."[63] According to the court, a defendant might be found guilty for even the natural tendency of his counsel.[64]

Under First Amendment law, temporal proximity would be of major importance, because *Brandenburg* does not permit prosecution of speech unless it incites immediate lawless behavior.[65] The "natural tendency" test is a relic from the bad-old-days of First Amendment law when war protesters were readily imprisoned for sedition.[66] Moreover, the law requires actual "incitement" for speech to fall outside the First Amendment's protection.[67] Mere counseling or encouragement would not suffice.[68]

Since he had either committed the crime of aiding and abetting or had engaged in protected free speech, Barnett's case hinged on whether the court would apply the First Amendment. The court summarily refused to apply the First Amendment, holding that "[t]he first amendment [sic] does not provide a defense to a criminal charge simply because the actor uses words to carry out his illegal purpose."[69] In allowing Barnett's conviction to stand, the court implied that the First Amendment would never apply in situations where a speaker counseled or encouraged another person to commit a crime. While that position would directly contradict *Brandenburg* and its progeny, the court failed to acknowledge or articulate any limiting principles.

3. Taxes

Even in tax protest cases, courts sometimes deny First Amendment

63. *Id.* at 840. "We know of no rule of law which fixes a time limit within which the crime must be perpetrated." *Id.* (quoting Workman v. State, 21 N.E.2d 712, 714 (Ind. 1939)).

64. *Id.* "An aider and abettor 'is liable for any criminal act which in the ordinary course of things was the natural or probable consequence of the crime that he advised or commanded, although such consequence may not have been intended by him.'" *Id.* (quoting Russell v. United States, 222 F.2d 197, 199 (5th Cir. 1955)).

65. Brandenburg v. Ohio, 395 U.S. 444, 447 (1969) (per curiam).

66. *See, e.g.*, Shaffer v. United States, 255 F. 886, 887 (9th Cir. 1919).

67. *Brandenburg*, 395 U.S. at 447.

68. *Id.* at 448–49.

69. *Barnett*, 667 F.2d at 842.

protection. In *United States v. Buttorff*,[70] cited with approval by *Barnett*, the Eighth Circuit denied free speech protection to the leaders of a tax protest group.[71] Gordon S. Buttorff and Charles A. Dodge were convicted by a jury of aiding and abetting several people in filing false or fraudulent income tax returns.[72] They had both addressed several gatherings of John Deere employees and discussed "the Constitution, the Bible, and the unconstitutionality of the graduated income tax."[73] "Only one principal testified to an affirmative action, other than speaking, by either defendant."[74] Thus, as the court summarized:

> The problem here, of course, is that each defendant's only participation in the allegedly illegal activity of the principals, except with regard to [one principal], was to talk about his ideas before gatherings of disgruntled Americans. What this court must decide is whether the first amendment [sic]... prohibit[s] the convictions of these defendants ....[75]

The court found that while "the speeches here [did] not incite the type of imminent lawless activity referred to in criminal syndicalism cases, the defendants did go beyond mere advocacy of tax reform."[76] Therefore, the court concluded that the speeches were not entitled to First Amendment protection and affirmed the convictions.[77]

Buttorff puts the distinction between speech and crime in stark terms. The court explicitly acknowledged that the government would not be able to satisfy the *Brandenburg* test in that there was no incitement of imminent lawless activity.[78] Nonetheless, the court allowed the prosecution of a speaker for his ideas to stand. Although the court stated that the speaker had gone beyond "mere advocacy," though not so far as "incitement,"[79] it did not explain what that middle ground was or why it was significant so as to distinguish the tax-protest speech from the statement in *Brandenburg* that "[w]e're not a revengent

70. 572 F.2d 619, 628 (8th Cir. 1978).

71. *Id.*

72. *See id.* at 621–22; *see also* 18 U.S.C. § 2 (2000) (aiding and abetting).

73. *Buttorff*, 572 F.2d at 622.

74. *Id.* at 623. Buttorff supplied one principal with a W-4 form and may have altered the number of deductions listed. *Id.*

75. *Id.*

76. *Id.* at 624.

77. *Id.*

78. *Id.*

79. *Id.*

organization, but if our President, our Congress, our Supreme Court, continues to suppress the white, Caucasian race, it's possible that there might have to be some revengeance taken."[80]

4. Natural Born Killers

Cases avoiding the First Amendment can reinforce each other. In *Byers v. Edmonson*,[81] a Louisiana appellate court held that a shooting victim could maintain a cause of action against Time Warner, Oliver Stone, and various producers of the movie, *Natural Born Killers*.[82] The plaintiff sued after assailants, allegedly inspired by the movie, shot her during the armed robbery of a convenience store.[83] Quoting extensively from the *Hit Man* case, the court concluded that it was enough that plaintiff alleged that the defendants "produced and released a film containing violent imagery which was *intended* to cause its viewers to imitate the violent imagery."[84] By refusing to apply the First Amendment, the court obviated the necessity of measuring the movie against the requirements of *Brandenburg*.

Byers traces back to the *Hit Man* case, which looks to *Barnett*, which relies upon *Buttorff*. At bottom, then, the whole line of cases rests on the shaky foundation of a court that refused to countenance advocacy of tax evasion. Moreover, all of these cases depend upon the supposed existence of a clear and obvious distinction between speech and crime. As it should now be clear, such a distinction is anything but obvious.

II. A UNIFIED APPROACH TO SYMBOLIC SPEECH AND CRIME

The First Amendment protects speech and, thus, implicitly endorses the separation of speech from other forms of conduct.[85] Yet, while the First Amendment does not create a general liberty interest, some forms

80. Brandenburg v. Ohio, 395 U.S. 444, 446 (1969) (per curiam).

81. 712 So. 2d 681 (La. Ct. App. 1998).

82. *Id.*

83. *Id.*

84. *Id.* at 687. Four years later, when the case again reached the Louisiana appellate court, the court changed its tune and affirmed the lower court's judgment dismissing the action against Oliver Stone and the film's producers. Byer v. Edmonson, No. 2001 CA 1184, 2002 La. App. LEXIS 1809, at **16–17. The court held that the "decision to imitate the characters of a film is more a regrettable commentary on their own culpability, than a danger of free expression requiring courts to chill such speech through civil penalties." *Id.*

85. *See* Adler, *supra* note 23, at 972; *see also* EMERSON, *supra* note 16, at 17 ("The central idea of a system of freedom of expression is that a fundamental distinction must be drawn between conduct which consists of 'expression' and conduct which consists of 'action.'").

of conduct are nonetheless treated as symbolic speech and protected under the First Amendment.[86] Marching,[87] flag burning,[88] and campaign contributions[89] all count as protected expression. It is accepted as a general matter, then, that conduct may have expressive value sufficient to bring it within the scope of the First Amendment.

This Article contends that for the same reasons that conduct may sometimes have characteristics that merit First Amendment protection, speech may lack such characteristics and properly be treated as crime.[90] Linking the theoretical projects of speech/crime and conduct/speech along one continuum allows the creation of a more encompassing theoretical regime for addressing the boundary issues of speech. Importantly, a continuum between conduct and speech can operate in both directions. Just as conduct sometimes is treated as symbolic speech, it is appropriate that speech is sometimes treated simply as crime. In undertaking this project, it makes sense to start with symbolic speech scholarship and case law, because it is the product of a more serious effort to develop a theoretical approach adequate to the task. (Beyond stating that speech will not be protected when it is "brigaded

86. For a discussion of why speech should be singled out for such special constitutional status, see, for example, EMERSON, *supra* note 16, at 8–9 (arguing that speech is more valuable and less dangerous than action); David A.J. Richards, *Free Speech and Obscenity Law: Toward a Moral Theory of the First Amendment*, 123 U. PA. L. REV. 45 (1974) (discussing high value of speech). *But cf.* Lawrence Alexander & Paul Horton, *The Impossibility of a Free Speech Principle*, 78 NW. U. L. REV. 1319, 1322 (1984) (doubting "that any theory could successfully establish and justify free speech as an independent value or principle of general application").

87. *See* Nat'l Socialist Party of Am. v. Skokie, 434 U.S. 1327 (1977).

88. *See* United States v. O'Brien, 391 U.S. 367 (1967).

89. *See* Buckley v. Valeo, 424 U.S. 1 (1976); *see also* CASS SUNSTEIN, DEMOCRACY AND THE PROBLEM OF FREE SPEECH 94 (2d ed. 1995) ("[A]n expenditure of money is an important means by which people communicate ideas, and the First Amendment requires a strong justification for any government regulation of an important means of communication.").

90. *Cf.* Cass R. Sunstein, *Words, Conduct, Caste*, 60 U. CHI. L. REV. 795, 836 (1993) (arguing that "speech that amounts to the commission of an independently illegal act . . . is properly treated as action" but that any other speech associated with illegality must "qualify as speech"). As discussed *infra*, this Article goes beyond instances where the language is in and of itself the crime and argues that speech falls outside the coverage of the First Amendment and amounts to conduct whenever it lacks communicative value. Sunstein also states that describing "words as 'conduct' provides a shorthand, if misleading, description of a more extended argument that the speech at issue does not promote First Amendment values and creates sufficient harms to be regulable under the appropriate standards." *Id.* at 837. To the extent that labeling the speech "conduct" is a shorthand for the analysis in this context, however, it is just as much a shorthand to label conduct "symbolic speech." The important thing is to make sure that those labels do not substitute for careful analysis of the conduct or speech.

with action," almost no work has been done to develop the distinction as it pertains to speech and crime.)[91]

Ultimately, what is important is not the formulation of a rigid test, but that important criteria are identified. The criteria should include: (1) the intent of the speaker/actor; (2) the understanding of the listener/observer; (3) the existence of speech-neutral reasons for government suppression; and (4) the social context in which the speech/action takes place.[92]

A. *Conduct as Speech*

What follows is not a comprehensive survey, but rather an analysis and synthesis of a few representative examples of approaches to distinguishing conduct and speech.

1. Intent to Communicate and Listener Understanding

In *Spence v. Washington*,[93] the United States Supreme Court explicitly addressed the scope of the First Amendment[94] in determining whether a student could be punished under a statute that prohibited exhibiting an American flag containing any additional "figure, mark,

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91. Kent Greenawalt's "'situation-altering' utterances" formulation is the most notable exception. GREENAWALT, *supra* note 18, at 40. As discussed *supra* note 18, this Article's approach differs in a number of respects, but at a broader level of generality (one which would also encompass Emerson's distinctions between speech and conduct) the approaches are roughly compatible. Though this is mostly a semantic quibble, Greenawalt's conception of situation-altering utterances seems problematic to the extent it suggests that the considerations that govern whether an utterance should best be treated as First Amendment speech are folded into the utterance itself. Characterizing an utterance as situation-altering puts the cart before the horse, because we cannot decide whether the utterance is situation-altering until we first have a clearer grasp of the situation. In fact, Greenawalt's analysis seems more geared to address whether an utterance is "situation-altered."

92. Without some doctrinal guidance, we would be left with a mushy balancing test, such as the one Professor Emerson proposed:

> The guiding principle must be to determine which element is predominant in the conduct under consideration. Is expression the major element and the action only secondary? Or is the action the essence and the expression incidental? The answer, to a great extent, must be based on a common-sense reaction, made in light of the functions and operations of a system of freedom of expression.

EMERSON, *supra* note 16, at 80. It has been observed that this involves "a subjective judgment, turning at times on rather arbitrary classifications." Melville B. Nimmer, *The Meaning of Symbolic Speech Under the First Amendment*, 21 UCLA L. REV. 29, 32 (1973).

93. 418 U.S. 405, 409 (1974) (per curiam).

94. *See* Post, *supra* note 14, at 1251 ("To the extent that contemporary First Amendment doctrine has self-consciously addressed [the question of the First Amendment's scope], it has been through the case of *Spence v. Washington* . . . .").

picture, design, [or] drawing."[95] The student had protested the Vietnam war by hanging a flag upside down with a peace symbol taped over it.[96] In order to decide whether to apply the First Amendment, the Court asked whether "[a]n intent to convey a particularized message was present, and [whether] in the surrounding circumstances the likelihood was great that the message would be understood by those who viewed it."[97] Finding that Spence's flag satisfied that standard, the Court determined that Spence's actions were protected by the First Amendment.[98]

The Supreme Court's criteria—intent and likelihood of understanding—guide lower courts,[99] and the Court has also continued to rely upon the test.[100] In addition, while the test has been much criticized,[101] some scholars have found the reasoning persuasive.[102] The Court thus focuses upon expressivity, at least as an initial matter. As discussed below, the Court and some scholars have identified additional factors to consider with respect to acts that are expressive under the *Spence* test.

2. Government Purpose

Professor Melville Nimmer's analysis of what actions should receive First Amendment protection begins with the proposition that "all human conduct may be said to convey ideas or meaning."[103] Professor Nimmer concludes that "as an irreducible minimum [the act in question] must constitute a communication."[104] He elaborates, along the lines of the *Spence* test, that communication involves an "actual or potential" audience and a speaker "intending to convey a meaning by his

95. *Spence*, 418 U.S. at 407 (quoting WASH. REV. CODE ANN. § 9.86.020 (West 1988)).

96. *Id.* at 405.

97. *Id.* at 410–11.

98. *Id.* at 415.

99. *See, e.g.*, United States v. Hayward, 6 F.3d 1241, 1249–50 (7th Cir. 1993); Steirer v. Bethlehem Area Sch. Dist., 987 F.2d 989, 995–97 (3d Cir. 1993); Young v. New York City Transit Auth., 903 F.2d 146, 153–54 (2d Cir. 1990); Parate v. Isibor, 868 F.2d 821, 827–28 (6th Cir. 1989).

100. *See* Texas v. Johnson, 491 U.S. 397, 403–04 (1989) (citing *Spence*, 418 U.S. at 410–11).

101. *See, e.g.*, Jed Rubenfeld, *The First Amendment's Purpose*, 53 STAN. L. REV. 767, 773 (2001) ("*Spence* is a profoundly unsatisfactory test . . . .").

102. Cass Sunstein, for example, argues "that what is apparently conduct should qualify as speech for First Amendment purposes if it is intended and received as an effort to communicate a message." Sunstein, *supra* note 90, at 836.

103. Nimmer, *supra* note 92, at 36.

104. *Id.*

conduct."[105]

Mindful of the difficulty of identifying "assertive" conduct, to say nothing of a speaker's intent, Nimmer emphasizes the importance of the purpose of government regulation.[106] Nimmer explains that "a non-speech interest is an interest by the state in suppressing or regulating a nonmeaning effect. In contrast, an anti-speech interest is an interest by the state in suppressing or regulating a meaning effect."[107] Nimmer "concluded that if the state can pose a non-speech interest as the basis for suppressing conduct, then such conduct should not be regarded as protectible under the first amendment [sic] even if the actor clearly intends such conduct to communicate a message—that is, to have a meaning effect."[108]

Nimmer's proposal draws upon and elaborates the Supreme Court's decision in *United States v. O'Brien*.[109] In *O'Brien*, where the defendant had burned his draft card in a public protest of the Vietnam war, the Supreme Court held that expressive conduct may be regulated if, among other things, "the governmental interest is unrelated to the suppression of free expression."[110] The Court found that the relevant law (which prohibited destruction of draft cards) was aimed at preserving the draft system, not suppressing speech, and therefore affirmed the conviction.[111]

3. Symbolic v. Non-Symbolic Acts

In *"Speech Acts" and the First Amendment*,[112] Professor Franklyn Haiman argues "that a fundamental difference obtains between symbolic and nonsymbolic interactions and that the First Amendment is *always* implicated in the former and only occasionally in the latter."[113]

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105. *Id.*

106. *Id.* at 36–38. In so doing, Nimmer took a skeptical view of a proposal made by a note in the Columbia Law Review that symbolic speech requires that "the conduct should be assertive in nature . . . that the conduct is a departure from the actor's normal activities and cannot adequately be explained unless a desire to communicate is presumed." *Id.* at 37 (quoting Note, *Symbolic Conduct*, 68 COLUM. L. REV. 1091, 1117 (1968)).

107. *Id.* at 38. As support for the distinction, Nimmer cited the Supreme Court's decision in *United States v. O'Brien*, 391 U.S. 367, 376 (1968). *Id.*

108. *Id.* at 39; *cf.* LAWRENCE H. TRIBE, AMERICAN CONSTITUTIONAL LAW, 827–28 (2d ed. 1988) (arguing that the First Amendment applies where the government's purpose is to suppress a viewpoint).

109. 391 U.S. 367 (1968).

110. *Id.* at 377.

111. *Id.* at 381–82.

112. FRANKLYN S. HAIMAN, "SPEECH ACTS" AND THE FIRST AMENDMENT (1993).

113. *Id.* at 5.

Under Professor Haiman's theory, symbolic conduct may be restricted only for content-neutral reasons.[114] For example, political assassination may communicate a message, but it has "palpable physical consequences that cannot be tolerated."[115] Conversely, this Article's argument is that to the extent certain conduct is more "symbolic," it is also the case that certain utterances are less "symbolic."

Professor Haiman would not likely approve of this use of his theory. While he purports to adopt the unitary view that symbolic behavior always merits First Amendment coverage, his theory is notable for its refusal to apply the lessons of conduct to speech. Professor Haiman takes a very dim view of speech-act theory in general and attempts to classify speech as conduct in particular.[116] Thus, he contends that "[w]hat speech-act theorists *would* restrict are the symbolic elements themselves—the ideas and meanings contained in the words, pictures, or representations in question—for it is these elements, or more accurately their consequences, that create the problems they seek to address."[117] In essence, Professor Haiman's point is that while only some conduct is symbolic, speech is *always* symbolic.[118] As "proof of this claim," Professor Haiman points out that "if these ideas or meanings were expressed in a foreign language unknown to [the] audience . . . there would be no harmful consequences about which to be concerned."[119]

The flaw in Professor Haiman's argument is that it identifies a necessary condition and simply assumes that it is also sufficient. It is indeed plain that a speech-act cannot succeed if its symbols are unknown to the audience—for example, handing an English-speaking bank teller a robbery note written in German is unlikely to have the desired effect—but the success of the speech-act depends upon more than the literal transmission of an idea from speaker to listener. The robbery note's effectiveness depends upon an underlying threat of violence. The difficulty is in deciding when the non-communicative aspects of a speech-act predominate its meaning in such a way as to preclude First Amendment application. The distinction can be difficult, but it is a distinction that courts must make. They will do so either

114. *Id.*

115. *Id.*

116. *Id.* at 4 (arguing that it "is a bit of word magic whereby the flapping of vocal chords, the scratching of a pen, the display of a picture, or the hoisting of a banner are transformed from symbolic to nonsymbolic behavior by an act of definition.").

117. *Id.*

118. *Id.*

119. *Id.*

openly or, as is now too often the case, *sub rosa*.

To see the contortions involved in seeking to avoid the horns of that dilemma, we need go no further than Professor Haiman's examples of pure symbolic speech. Professor Haiman argues that an umpire's yelling "[y]ou're out" and a general's order to a soldier illustrate that the "power of speech lies in its ability to persuade, not in its ability to enact."[120] While speech "commonly precedes deeds . . . it is not per se a deed."[121] Thus, "[l]ike the batter who has struck out, the soldiers follow the general's directive because they believe in the war they are fighting (as the batter believes in the game of baseball) or because they accept the authority of the state and are unwilling to become conscientious objectors."[122] The general's power, in other words, cannot alter the effect of his speech—"soldiers can, and sometimes do, disobey. They may be shot as a result . . . . But until that happens . . . the words of the order to advance have produced no effects."[123]

Professor Haiman's argument depends upon an unjustifiably narrow view of causation. It is hard to believe that Professor Haiman means to argue that the words are not a cause in fact of the ultimate effect, though he describes the relationship only temporally (words "commonly precede[] deeds").[124] More likely, he is contending that there is no proximate causation because the words produce an effect only after mediation in the consciousness of a listener who remains, in theory, free to reject them. Thus, because words cannot literally perform actions, they are not conduct.[125]

Yet, no explanation is given for why words should be considered apart from their context. Surely, umpires and generals mean to exert the authority with which they are invested when they issue orders, and

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120. *Id.* at 12.

121. *Id.*

122. *Id.* at 13.

123. *Id.*

124. *Id.* at 12. *Cf.* DAVID HUME, AN ENQUIRY CONCERNING HUMAN UNDERSTANDING 30 (Eric Steinberg ed., 1993) (arguing that in the context of the empirical tradition—which holds that all knowledge comes from perception—we cannot prove causation because we have no perceptual access to it. "All belief of matter of fact or real existence is derived merely from some object, present to the memory or senses, and a customary conjunction between that and some other object.").

125. Arguably, though, the umpire's words do literally constitute action, because they carry weight within the rules of baseball. Thus, by yelling "you're out," the umpire "has worked a direct change in [the player's] status according to institutional standards." GREENAWALT, *supra* note 18, at 57–58. Whether the players choose to heed the umpire's order, which is Professor Haiman's concern, is in a sense irrelevant. Whether or not he acknowledges it, the player *is* out.

players' and soldiers' responses are largely governed by that power. It does not bode well for Haiman's absolutist view of the nature of speech that it depends upon such an artificially divided, if not blinkered, view of reality. If he concedes, as surely he must, that a general's order to a private is more likely to be obeyed than a private's order to a general, then it follows that something more than the abstract meaning of the words in question impacts upon the real-world import of speech. Haiman's response appears to be that those other factors are all well and good, but they have nothing to do with the fact that speech itself is always symbolic. Conceding that such a separation is possible in theory, there is no reason to make such a separation for purposes of free speech analysis. To do so would be to remove from legal consideration much of what actually matters. On that view, for example, the law could not distinguish between Mike Tyson commanding a woman to undress and a woman making the same demand of Mike Tyson.

Professor Haiman is mindful that his theory cannot be used to decide cases, and he retreats from the implications of his analysis, concluding that at least with respect to "direct threats and intimidation" there comes a point "that no one would dispute validity of prohibiting them."[126] Moreover, he acknowledges that such a judgment "cannot be made out of context."[127] Therefore, he rejects any "theorist's a priori decision to classify *all* threatening utterances as speech acts that are categorically beyond the protection of the First Amendment."[128]

Properly understood, Professor Haiman's analysis of symbolic versus non-symbolic speech is compatible with the project of this Article. Professor Haiman misses the broader implication of his analysis because he insists upon the concept of "pure speech." Thus, for example, he states that if "it is found that a victim has in fact been intimidated by an utterance that any normal person might reasonably perceive as menacing, it would then be appropriate to invoke legal remedies against the *pure speech* in question."[129] But since we have now seen that the social meaning of speech is not even really intelligible outside of its context, in what sense does it remain pure? In fact, the "symbolic" and the "non-symbolic" are deeply intertwined. The real work to be done is in finding ways to assess how the two interact and what First

126. HAIMAN, *supra* note 112, at 16.

127. *Id.* at 17.

128. *Id.* ("A threat by a 125-pound weakling to punch out a 250-pound football player is not the same as the threat of a teenage gang . . . to beat up or kill anyone who enters their turf.").

129. *Id.* (emphasis added).

Amendment consequences follow.

4. Social Context

Rejecting the intelligibility of the distinction between conduct and speech altogether, Professor Robert Post proposes that instead we focus upon the relevant social space/context.[130] He contends that the *Spence* test, for example, is "transparently and manifestly false."[131] It is not enough to ask whether a given action is intended to communicate and is received as communication, because that test would necessitate protection of, for example, certain "defacement[s] of public property."[132]

Instead, Post observes (in line with Professor Nimmer and other scholars):

> Although a great deal of ink has been spilled on the question of whether such symbolic conduct is or is not "speech" for purposes of the First Amendment, a close analysis of these cases indicates that they almost invariably turn on judicial scrutiny of the purposes served by the regulation at issue.[133]

The appeal of neutrality analysis is that it shifts the focus away from the difficult task of ascertaining the nature of the act that is subject to regulation.

Without rejecting the utility of the government-purpose analysis, Professor Post goes a step further and contends "that all legal values are rooted in the experiences associated with local and specific kinds of social practices."[134] First Amendment justifications are ultimately

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130. *See* Post, *supra* note 14, at 1250 ("[T]he constitutional values advanced to justify [First Amendment] protection inhere not in speech as such, but rather in particular social practices."); *see also* TRIBE, *supra* note 108, at 831 ("The very notion of speech is, of course, incomprehensible outside a cultural and social context. Thus activities ordinarily thought to be speech-related need not be so in every setting."). Although Post's analysis seeks to discredit the idea of a continuum between conduct and speech, it is nonetheless consistent with my basic argument. The key point is that the same issues are raised in the crime/speech and the conduct/speech contexts. If Post is right, then his theory of social context should also prove decisive with respect to identifying the boundary between crime and speech for First Amendment purposes.

131. Post, *supra* note 14, at 1252.

132. *Id.*

133. *Id.* at 1256 (citing R.A.V. v. City of St. Paul, 505 U.S. 377 (1992)).

134. *Id.* at 1272; *see also* Lee Tien, *Publishing Software as a Speech Act*, 15 BERKELEY TECH. L.J. 629, 635 (2000) (contending that "[t]he crucial issue as to whether an act is a speech act is the speaker's intent in relation to social practices or conventions"). Tien takes a narrower view of the role of social context in that he sees it as a part of intent analysis,

social—even "self-realization is . . . a social, not merely a private, practice."[135] Accordingly, rather than identify "generic constitutional value,"[136] Post proposes that we recognize that "speech is always situated in a real social space" and that "[t]he aspiration to make speech itself the basic unit of First Amendment analysis thus leads . . . directly to doctrinal incoherence."[137] The proper role of courts is in "recognizing, defining, and attributing constitutional values to specific forms of social order, and of grasping the function of speech in the achievement of those constitutional values."[138]

Although Professor Post contends that his analysis of speech as situated in social practice is radically different than current doctrine, in fact, it is largely another way of asking whether an audience would understand that the speaker was communicating and not simply seeking to accomplish a specific end. Social context enfolds considerations—such as relative power of speaker and spoken-to—that effect the real-world meaning of an utterance. Professor Post's emphasis on the importance of social context is nonetheless valuable, because it offers a sophisticated way of understanding speaker intent and listener reaction.

B. Applicable Principles

As the preceding discussion illustrates, courts and scholars have taken a variety of approaches to identifying symbolic speech. For the purposes of this Article, it will suffice to highlight some of the recurring criteria. First, courts should consider whether it is reasonable to think that communication was intended by a particular speech-act, and whether it would likely be understood by an audience as communication.[139] Second, courts should consider context carefully in

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whereas Post treats social context as an independent factor.

135. Post, *supra* note 14, at 1273.

136. *Id.* at 1273.

137. *Id.* at 1274.

138. *Id.* at 1275.

139. *See supra* Part II.A.1. Speaker intent and listener understanding are almost, but not quite, identical. From the listener's point of view, speech operates more or less like conduct depending upon the listener's ability to mediate the speech through her own faculties and to decide upon a course of action. A shout of "fire" in a movie theater does not leave time for reflection or choice. Arguably the same might be said of blackmail, where the compulsion of circumstance overrides the listener's ability to choose. The words are like conduct in both examples, because they cause effects in the world without any meaningful evaluation or choice on the listener's part.

One might focus instead upon the speaker's perspective. In that view, intent becomes more important. When one shouts "fire" in a movie theater (whether from the best or the worst motives) one intends to induce an immediate effect. *But cf.* Van Alstyne, *supra* note

deciding whether a given speech-act should best be thought of as expressive or non-expressive, because communication is a social practice and exists within particular social contexts.[140] Third, courts must be mindful of the purpose of government regulation.[141] Laws that are more focused upon the context of certain utterances (for example, situations such as extortion where the utterance is backed by coercion) are more likely to be valid than laws that target the actual ideas communicated—such as, sedition laws.[142]

Situating symbolic speech analysis within a broader theoretical context would improve upon the essentially standardless current approach to distinguishing speech and crime and would provide a measure of consistency in the law's treatment of expression.[143] The labels "speech" and "crime" would become the end product of careful analysis, rather than a substitute for such analysis. Those doctrinal improvements would in turn make possible more thoughtful analysis of the deeper questions—what First Amendment values are implicated by the line drawn between speech and conduct, and how can those values best be incorporated into the law?[144]

14, at 114 (citing TOM STOPPARD, ROSENCRANTZ AND GUILDENSTERN ARE DEAD 60 (1967) (parodying this point by having an actor shout "fire!")). There is no need to offer reasons for fleeing a burning house. Similarly, a blackmailer deliberately uses leverage unrelated to the persuasiveness of her ideas, to compel obedience. In any event, the line between the perspective of the speaker and the spoken-to is—as the examples above illustrate—not a sharp one.

140. *See supra* Part II.A.3, 4.

141. *See supra* Part II.A.2.

142. For example, the laws of trespass, destruction of property, and air pollution may all be applied to a flag burner, but the government may not specifically prohibit the burning of the American flag in order to safeguard our values. *See* DANIEL A. FARBER, THE FIRST AMENDMENT 41 (1998).

143. In addition, scholarly suggestions for improvement in how courts distinguish conduct from "symbolic speech" might profitably be employed in the speech/crime context as well. For example, as discussed *supra* Part III.A, Professor Robert Post has proposed an analysis that turns more on the social context in which a given act is located than on whether it can in some abstract sense be considered communicative. *See* Post, *supra* note 14, at 1250.

144. Professor Tribe argues that "the distinction between speech and conduct must be seen at best as announcing a conclusion of the Court, rather than as summarizing in any way the analytic processes which led the Court to that conclusion." TRIBE, *supra* note 108, at 827. However, the Supreme Court has at least offered principles to guide the analysis. In addition, even scholars such as Tribe who *reject* the utility of the speech/conduct distinction provide methods of analyzing the applicability of the First Amendment to non-verbal acts. Those theories can also be applied to verbal acts—regardless of whether the scholars embrace the idea of a continuum between conduct and speech or seek to explode it. Whatever the analysis advocated, this Article contends it should apply to all acts, verbal or non-verbal.

While Tribe insists upon the lack of a meaningful distinction between conduct and speech, he identifies the possibility of escape devices only in the context of assessing whether

III. DEFENDING THE DISTINCTION

The theory outlined above must navigate through a Scylla and Charybdis of objections. On the one hand, some scholars assert that any attempt to characterize speech as conduct or "speech plus" is disingenuous.[145] On the other hand, scholars have argued that there is no meaningful distinction between speech and conduct.[146] As discussed below, neither objection requires abandonment of the project.

A. Speech as Conduct

According to one argument, all utterances are equally speech and any attempt to characterize them otherwise "is a mere cavil."[147] Those who would do so, the argument continues, rely upon "verbal subterfuge" to avoid facing the fact that they are, in fact, abridging speech.[148] The argument serves as a useful reminder that wherever courts are invested with power to make characterizations there is a danger they will use that power to make second-order decisions by verbal subterfuge. Even though courts are better able to distinguish between conduct and expression than between speech and crime, that does not mean they will be immune from the temptation to massage the categories in order to reach a desired result.

The argument lacks merit, however, for two reasons. First, it depends on the mistaken view that the First Amendment's "imperative is simple, straightforward, complete, and absolute: *Congress shall make no law abridging the freedom of speech.*"[149] As mountains of scholarship and case law can attest, nothing could be further from the truth.

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conduct amounts to speech. *See id.* at 826 n.7 (citing Harry Kalven, Jr., *Upon Rereading Mr. Justice Black On the First Amendment*, 14 UCLA L. REV. 428 (1967)). He fails to notice escape devices in the crime/speech context, even though the same kinds of boundary distinctions are at issue. Thus, even recognizing that there are common questions involved in deciding First Amendment coverage with respect to verbal and non-verbal acts would be a substantial improvement over current doctrine. That might in turn lead to clearer thinking about the constitutional values that Tribe rightly points out are implicated.

145. Van Alstyne, *supra* note 14, at 114 ("The shout of 'Fire!' is not less speech in the Holmes instance than the shout of 'Fire!' from the mouth of an actor on the stage of the same theater, spoken as but a word in a play."); *see also* HAIMAN, *supra* note 111, at 5.

146. John Hart Ely, *Flag Desecration: A Case Study in the Roles of Categorization and Balancing in First Amendment Analysis*, 88 HARV. L. REV. 1482, 1495–96 (1975); *see also* Lawrence B. Solum, *Freedom of Communicative Action: A Theory of the First Amendment Freedom of Speech*, 83 NW. U. L. REV. 54, 110 (1989).

147. Van Alstyne, *supra* note 14, at 114.

148. *Id.* at 114, 136.

149. *Id.* at 111.

Perhaps most importantly, the Constitution does not define "*the* freedom of speech." If the First Amendment were entirely straightforward (and intended to encompass every utterance of whatever sort), it could have left out "the freedom of." As it stands, the Amendment raises, but does not answer, the question of what defines that freedom.[150] Thus, we must look to the purposes animating the First Amendment in order to ascertain what counts as free speech within the meaning of the First Amendment. It is not the task of this Article to reassess those purposes, and it should suffice to note that "expression" (whether personal or political) is usually at the top of the list. Accordingly, a serious effort to sort speech by its expressiveness should be viewed as a good-faith attempt to follow the First Amendment and not a craven dodge.[151]

The argument that speech cannot ever be described as conduct lacks merit for a second reason: it assumes that "speech" is a category that is radically distinct from "conduct," such that any attempt to view one in terms of the other could only be "mendacious."[152] In fact, as discussed in the next subsection, the real issue is whether conduct and speech can be separated in the first place.

B. Speech as Speech

The distinction between conduct and expression must meet the objection that the two are not separate categories at all. It is undeniably true that all speech is in a sense conduct, because it involves exhalation

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150. *Id.* at 116 (stating that "[s]ome external referent must be used to provide the distinction between that speech within 'the' freedom of speech and that speech not within it"); *see also id.* at 123. It is somewhat curious that Professor Van Alstyne acknowledges this point but also appears to condemn as disingenuous attempts to sort free speech from speech that lacks the characteristics of free speech. Would it satisfy him if courts distinguished between "speech" and "speech that has real-world effects closer in nature to conduct than expression"? That is, after all, what it means to label speech as conduct.

Professor Van Alstyne further notes, without disapproval, that "ordinary criminal solicitation" is generally considered to be outside the First Amendment. *Id.* at 117. Ironically, by rejecting analysis of what about an utterance distinguishes punishable criminal solicitation from speech of the sort sheltered by *Brandenburg*, Professor Van Alstyne makes it more likely rather than less likely that a court will decide close cases by disingenuous characterization.

151. Just applying labels, no matter how sophisticated, would not be enough, however. For that reason, Justice Douglas's unexplained formulation "speech brigaded with action" does not go far enough. Brandenburg v. Ohio, 395 U.S. 444, 456 (1969) (Douglas, J., concurring). Perhaps Professor Van Alstyne had labeling of that sort in mind when he dismissed the possibility of identifying utterances that are not First Amendment speech but rather conduct.

152. Van Alstyne, *supra* note 14, at 136; *see also* HAIMAN, *supra* note 112, at 5.

of air across the vocal chords modified by the tongue and palate.[153] Speech is also physical in that it is the embodiment of ideas that must descend to the corporeal before they can be expressed.[154] More to the point, some argue that so called "speech acts" do more than convey abstract ideas—their promises, urgings, orders, and directions "coordinate[] human conduct through understanding."[155] In that sense, all speech is "100% action and 100% expression."[156]

As lawyers, if not philosophers, we can acknowledge that speech may always be conduct and still distinguish between speech designed to express an opinion and speech narrowly designed to effect some actual change in the world.[157] Speech-act philosophy itself distinguishes between assertions of fact and value and requests and orders.[158] Beyond the formal qualities of a speech-act, we can also take into account external factors and note that while "many . . . speech acts are 'conduct' in a narrow sense, . . . not all of them have the power to produce . . . effects or initiate a set of consequences; indeed, many of them are quite comic in this regard . . . ."[159] Thus, "[t]o act linguistically is not

153. *See* JOHN R. SEARLE, MIND, LANGUAGE, AND SOCIETY, 135–36 (1998). Writing and typing could also be described in terms of the physical conduct necessary to their production.

154. *Cf.* JOHN DONNE, *The Ecstasy*, *in* THE COMPLETE POETRY AND SELECTED PROSE OF JOHN DONNE & THE COMPLETE POETRY OF WILLIAM BLAKE 34 (Charles M. Coffin ed., 1994) (arguing that love manifests itself through physical expression). "Love's mysteries in souls do grow,/But yet the body is his book./And if some lover, such as we,/Have heard this dialogue of one,/Let him still mark us, he shall see/Small change, when we are to bodies gone." *Id.*

155. Solum, *supra* note 146, at 110.

156. Ely, *supra* note 146, at 1495–96; *see also* Solum, *supra* note 146, at 110.

157. Because the First Amendment assumes the foundational plausibility of a distinction between conduct and speech, the criticism is larger in scope than the thesis of this Article. Indeed, if true, that critique would make the entire enterprise of liberal free speech law and scholarship an insupportable fiction. The consequences of the argument do not, of course, refute it, but the burden of proof rests rather heavily with those who would deny the very possibility of free speech. If those scholars are correct, then, as some cheerfully acknowledge, the First Amendment bursts like a bubble and the test proposed here for determining its scope is as useless as any other. *See* Pierre Schlag, *How to Do Things with the First Amendment*, 64 U. COLO. L. REV. 1095 (1993); Stanley Fish, *There's No Such Thing as Free Speech and It's a Good Thing Too*, BOSTON REV., Feb. 1992, at 23. It is tempting to view the objections raised as abstract and epistemological. Just as our lives go on despite the unanswerable possibility that all we experience is illusion and we are, to cite the classic example, no more than a brain in a jar manipulated by an evil scientist, perhaps free speech can scrape by just the same with judicious (if not entirely philosophically rigorous) appeal to constitutional authority. The distinction remains necessary. We cannot organize a society or live our lives in a world in which all such distinctions have collapsed.

158. *See* SEARLE, *supra* note 153, at 148–50 (listing various types of speech-acts).

159. JUDITH BUTLER, EXCITABLE SPEECH: A POLITICS OF THE PERFORMATIVE 16

necessarily to produce effects."[160]

This Article contends that words that are spoken to accomplish a specific end and that have no other expressive component are better thought of as conduct than speech. For example, the words that constitute an agreement to a contract effect a concrete change in the legal rights and obligations of the parties to the contract. The language of a contract amounts to conduct, because it operates directly to change real-world relationships.[161] Similarly, words spoken to effectuate a robbery—"put up your hands," "open the register," and "give me your wallet"—are narrowly purposive and designed to do rather than express something.[162] They are simply a functional component of the robbery and would not be understood by a listener as anything more. To be sure, there is an expressive element to such speech in that it communicates, among other things, the speaker's view of the relative importance of his own needs compared with his victim's. But such expression as may exist in the robber's orders is merely incidental and entirely secondary to the accomplishment of the crime.[163] The words would be spoken regardless of whether the victim would understand their secondary expressive message.

One might object that the robber's words are also communicative in the first instance inasmuch as they will not have any effect unless the listener understands the language and, thus, the message communicated. By labeling certain utterances conduct, I do not mean to suggest that there is literally no communication involved, but that the speech-act as a whole is better understood as conduct. For example, the robber's words operate only to put in play the underlying threat of violence and do not seek to persuade the listener through direct appeal to the listener's capacity for reason (or even to the listener's capacity for emotional suasion).

(1997) (characterizing "Austin's tract, *How to Do Things with Words*, as an amusing catalogue of such failed performatives").

160. *Id.* at 17.

161. This is an example of what Professor J. L. Austin termed an "illocutionary" utterance. *See id.* (explaining that "[t]he illocutionary speech act is itself the deed that it effects"). Some scholars contend that pornography and hate speech are illocutionary—a topic beyond the scope of this Article. *See id.* at 23 (criticizing that view on the ground that it takes too fixed a view of language, ignoring the possibility of "restating" or "restructuring" the speech in question).

162. Professor Austin labeled this kind of speech "perlocutionary" because it "merely leads to certain effects that are not the same as the speech act itself." *Id.* at 3.

163. *Cf.* SEARLE, *supra* note 153, at 149 (stating that "orders and commands . . . cannot be true or false, but they can be carried out, kept, or broken").

The point can be generalized. Like robbery, blackmail and extortion employ speech simply to convey the threat of concrete harm (whether physical or on the reputation). By contrast, a speech appealing to an audience without resort to some external compulsion operates as speech in the first instance, and not simply as the delivery mechanism for other criminal conduct. That is the case even for crudely racist speech that advocates criminal conduct.[164]

C. *Additional Objections*

There are a number of additional counter-arguments that might be raised to the proposed threshold sorting of speech and crime along an expressivity continuum. None of these is persuasive.

1. Expressive Crime

One might contend that while some crimes are not primarily about expression, such as the mugging described above, others are. Consider, for example, the Palestinian suicide bombers' attacks in Israel. The bombers surely intend to express a political message. Distinguishing crime and speech solely along the line of expressivity arguably poses the problem of what to do about crimes committed precisely in order to express an idea. Tying "crime" to the broader doctrinal category "conduct" arguably requires justification of why courts should parse crime and speech along the continuum of expressivity.

The "expressive-crime" objection fails, however, because it ignores the neutrality principle central to symbolic speech. The government is free to regulate expressive conduct so long as it does so for content-neutral reasons.[165] The "expressive-crime" objection merely serves to remind us that we need to be very careful to identify the locus of expression—in the utterance or in related action. We should ask whether the utterance *itself* is expressive or, rather, a narrow cog facilitating the accomplishment of a criminal end. Although a terrorist bombing may well be expressive, the government has powerful speech-neutral reasons to stop it and to punish it. Moreover, the government can regulate facilitating speech narrowly aimed at getting the crime

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164. *See, e.g.*, Brandenburg v. Ohio, 395 U.S. 444, 446 (1969) (per curiam) ("'We're not a revengent organization, but if our President, our Congress, our Supreme Court, continues to suppress the white, Caucasian race, it's possible that there might have to be some revengeance taken.'") (citation omitted)).

165. *See, e.g.*, FARBER, *supra* note 142, at 41 (describing government purpose as "the crucial question").

accomplished.[166]

If, on the other hand, the utterances are expressive *by themselves*—such as in a *Brandenburg* style exhortation of a crowd—then those utterances should be analyzed within the rubric of the First Amendment.[167]

2. Multiple Factors

One might also object to the expressivity continuum on the ground that there are other factors, influencing whether a court should provide free speech protection, that do not fit neatly into the continuum. To name a few: (1) the speaker/audience relationship; (2) the specificity of the speech; (3) the speaker's intent; (4) the political cast (if any) of the speech; (5) whether the speech is public or private; and (6) the gravity of the crime in question.

To say that speech can best be evaluated along an expressivity continuum does not mean that these features are irrelevant. Indeed, this Article contends that social context is important. For instance, in assessing whether a given speech-act was expressive, one would want to know to whom (if anyone) it was communicated, the relative status of speaker and audience, the intent of the speaker, and any number of other contextual cues. However, courts need clarity. It is always possible to imagine more nuanced tests, but it is worth asking whether the greater complexity yields precision that is worth the unwieldiness.[168]

3. Erasing the Boundary

One might also ask why courts should employ a threshold test at all. Why not treat all speech as cognizable under the First Amendment? The answer to that question depends upon what it means to apply the First Amendment. If, on the one hand, it is suggested that bribery and extortion should receive the high-level of protection described in *Brandenburg*, the notion is ridiculous. No sensible theory of the

166. That is to say, the government is free to regulate the criminal conduct for any speech-neutral reason.

167. And it is quite possible that the danger, imminence, and other factors would warrant regulation. Regulating speech without regard to the First Amendment would, however, be improper.

168. *See* Richard H. Fallon, Jr., *Making Sense of Overbreadth*, 100 YALE L.J. 853, 864 (1991) (noting that "First Amendment doctrine is almost infinitely complex"); Van Alstyne, *supra* note 14, at 109 ("Nicely qualified, complex formulations may be necessary and proper for statutory codes. They may be profoundly uninspiring in a constitution—the fundamental law of a nation.").

purposes and principles underlying the First Amendment would permit such a reading,[169] and it would accord an almost sacred significance to speech-acts as opposed to other acts. If, on the other hand, it is suggested that the First Amendment appeal of low value speech (such as bribery and extortion) can be rather summarily dismissed, then we have simply replicated the debate within the confines of the First Amendment. How we are to distinguish speech and crime is not solved by declaring at the outset that the First Amendment applies to all speech.

Rather than distorting its meaning, we should reserve the First Amendment category for speech that is more than simply the means of accomplishing a crime. There is no good reason to include bomb threats and ransom notes along with political arguments. Moreover—although it may be attacked for positing a false distinction between speech and conduct—this Article's suggested threshold analysis actually minimizes the distinction even as it employs it. Utterances are speech-acts, a mix of speech and conduct—by excluding some speech-acts from the scope of the First Amendment's coverage, this Article acknowledges the duality of speech. By contrast, stating that all speech receives *some* level of First Amendment protection would seem to reinforce the philosophically discredited view that speech is radically different from other kinds of conduct.

IV. THE BOUNDARY BETWEEN SPEECH AND CRIME RECONSIDERED

In light of the principles outlined above, we are now in a position to revisit the cases discussed earlier as examples of problematic decision-making. As we have seen, the confused state of the law has made it difficult for courts to approach the task of separating speech and crime. A review of the cases discussed in Part I in light of the principles identified in Part II points the way to a more fruitful discourse.

A. Hit Man

Although it correctly identifies the tension between the criminal law and the freedom of speech, the Fourth Circuit in *Rice v. Paladin*

169. Many justifications for the First Amendment have been advanced, and this author does not take sides here. In brief, those theories include: (1) political participation; (2) the marketplace of ideas; (3) self-expression; and (4) venting steam. *See* HAIMAN, *supra* note 112, at 7 (summarizing some of the most commonly cited justifications for freedom of speech). To that list we should add Professor Lee Bollinger's argument that free speech promotes toleration. *See generally* LEE C. BOLLINGER, THE TOLERANT SOCIETY (1995).

Enterprises, Inc.[170] avoids grappling with the difficulty by relying upon worst case scenarios. One can freely concede that the government must have the power to protect its citizens and still feel that First Amendment interests restrict the government's power to punish speech. The court is unconvincing to the extent it suggests that allowing the First Amendment "to limit government regulation" is tantamount to leaving government "powerless" to enforce its criminal law.[171]

In order to make its decision to treat *Hit Man* as outside the scope of the First Amendment more plausible, the court offered a loaded description of the speech involved. After opening its decision with extensive and inflammatory excerpts from *Hit Man*, the court described the contract killer as "readied by [*Hit Man's*] instructions and *steeled* by [its] seductive adjurations."[172] This characterization is unexplained and unconvincing. The writer of *Hit Man* appears to the reader only as a disembodied voice, and the author has no coercive power over the reader other than by the rhetorical power of his words.[173] In terms of the *Spence* test,[174] the book is both intended and likely to be understood as communication. By "steeled," therefore, the court appears to mean something along the lines of "likely to result in real world consequences," and, almost by definition, that is just another way of saying "persuasive."

Also unexplained is the court's statement that the speech was "tantamount" to "proscribable . . . conduct."[175] If all speech that advocated illegal activity were "tantamount" to the illegal activity itself, then there would be no freedom to advocate what is unlawful and *Brandenburg* would be a dead letter. Without more, the statement suggests that there is *no* distinction between illegal conduct and speech that encourages it. Although it is possible that the First Amendment would not ultimately require protection of the speech contained in *Hit Man*, it seems unlikely that commercial book publishing, a well

170. 128 F.3d 233 (4th Cir. 1997).

171. *Id.* at 244 ("Were the First Amendment to bar or to limit government regulation of such 'speech brigaded with action,' the government would be powerless to protect the public from countless of even the most pernicious criminal acts and civil wrongs.") (citation omitted).

172. *Id.* at 239 (emphasis added).

173. The situation would obviously be quite different if, for example, a general were ordering a subordinate to engage in an illegal activity. *See* GREENAWALT, *supra* note 18, at 65 ("If a person with authority directs a subordinate to perform an act, the second person has a new duty to perform.").

174. Spence v. Washington, 418 U.S. 405, 409 (1974) (per curiam).

175. *Paladin*, 128 F.3d at 243.

established means of communication in our society, could be understood as "conduct."

By conflating book publishing with the private solicitation of murder, the court gave little weight to the social context of the speech. Publishing a book is perhaps the paradigmatic example of free speech. It may be possible to commit a crime by publishing a book, at least under certain narrow circumstances, but the court failed to adequately distinguish book publishing from, say, Lawrence Horn's private solicitation of a contract killer. The court noted only that the publisher sold its wares primarily by mail order, concluding that a jury could "find that *Hit Man* is not at all distributed to the general public and that, instead, it is available only to a limited, self-selected group of people interested in learning from and being trained by a self-described professional killer."[176] Yet, many small publishers (including academic publishers) do not distribute to the general public, and the court fails to explain why publishers who distribute their books at Barnes & Noble and Borders should be accorded more First Amendment protection than those who rely upon other means of distribution.[177]

Somewhat more persuasively, the Fourth Circuit posited a distinction between abstract advocacy and specific instructions. The court observed that *Hit Man* couples advocacy with specific instructions and cited the Ninth Circuit for the proposition that "the First Amendment does not provide publishers a defense as a matter of law to charges of aiding and abetting a crime through the publication and distribution of instructions."[178] There is authority for distinguishing between advocating anarchy as a general matter and disseminating precise bomb-making instructions. Dissenting from the conviction of Marxist leafletters in *Dennis v. United States*,[179] Justice Douglas opined that "[i]f this were a case where those who claimed protection under the First Amendment were teaching the techniques of sabotage," the convictions might be justified because "the teaching of methods of terror and other seditious conduct should be beyond the pale."[180] A

176. *Id.* at 255.

177. To the contrary, it may be the case that the First Amendment should provide more protection to those who lack resources. For example, some have justified efforts to limit the size of campaign contributions on the ground that those limits afford an opportunity for citizens of average means to make their voices heard.

178. *Paladin*, 128 F.3d at 244 (citing United States v. Barnett, 667 F.2d 835 (9th Cir. 1982)).

179. 341 U.S. 494 (1951).

180. *Id.* at 581 (Douglas, J., dissenting).

distinction between abstract advocacy and specific instructions also runs through the tax-evasion cases.

While there is authority for the distinction drawn by the Fourth Circuit, the court does not explain why instructions are more like conduct than speech in the context of *Hit Man's* advocacy of the assassin's lifestyle. The court condemns *Hit Man* in part for its "seductive adjurations."[181] Although the presence of specific instructions may affect the analysis under *Brandenburg* by allowing a fact finder to more easily find the requisite elements for liability—incitement, imminence, likelihood, and intent—the utter removal of First Amendment protection would require more justification than the Fourth Circuit provides. Specificity is, after all, a tool of advocacy. Any college textbook on persuasive speaking will emphasize the importance of providing the listener with a clear explanation of how to achieve the goal advocated by the speaker. The First Amendment surely shelters more than ineffective speech.

The Fourth Circuit failed to grapple with the complexity of the task before it and erred in citing *Brandenburg* for the simplistic proposition that "'[t]he cloak of the First Amendment envelops critical, but abstract, discussions of existing laws, but lends no protection to speech which urges the listeners to commit violations of current law.'"[182] The *Hit Man* case concerned a book filled with undoubtedly offensive and evil advice, but for the reasons discussed above, the publisher was nonetheless entitled to some level of First Amendment protection.[183]

B. *Angel Dust*

The court in *United States v. Barnett*[184] observed that crimes are often committed using speech and cited as examples "[t]he use of a printed message to a bank teller requesting money coupled with a threat of violence, the placing of a false representation in a written contract, the

181. 128 F.3d at 239.

182. *Id.* at 246 (quoting United States v. Kelley, 769 F.2d 215, 217 (4th Cir. 1985)). The Fourth Circuit ignores the language of the opinion and the history of its interpretation by the Supreme Court. *See supra* Part I.A (summarizing case law).

183. Whether the First Amendment would require application of the *Brandenburg* standard is a question of content, beyond the purview of this Article. Professor Smolla has suggested that one might look instead to libel law precedent and require a lower level of intent, rather than "mechanically and blindly" applying *Brandenburg* in a very different context. *See* Rodney A. Smolla, *The First Amendment and New Forms of Civil Liability*, 88 VA. L. REV. 919, 940–42 (2002).

184. 667 F.2d 835 (9th Cir. 1982).

forging of a check, and the false statement to a government official."[185] While correct as far as it goes, the court's observation does not help it to articulate why the particular speech involved in the case before it fell into the category of crime rather than into the category of advocacy of illegal acts protected by *Brandenburg*.

As support for its decision, the court simply cited an earlier case, *United States v. Buttorff*,[186] in which defendants were not allowed a First Amendment defense for speeches encouraging violation of federal tax laws.[187] The *Barnett* court did not necessarily err by refusing to apply the First Amendment, but it failed to provide sufficient justification for its decision. The court should have at least acknowledged that some speech that encourages law violation does receive First Amendment protection—for example, the rabble rousing in the seminal First Amendment cases *Brandenburg*,[188] *Hess*,[189] and *Watts*.[190] The court might then have distinguished those cases by pointing out (1) that the drug instruction manuals contained little if any advocacy, and (2) were mailed directly to those interested, such that the defendant made a conscious decision to facilitate each individual crime.[191] Under the *Spence* test,[192] it appears that the defendant intended to assist in the commission of a crime, and that the recipient of the instructions would understand them in those terms, rather than as communication. Thus, applying the theory of "symbolic speech," the court might have concluded that the instruction manuals were, in effect, non-symbolic conduct.

The *Barnett* court might further have considered whether the government's prosecution was speech-neutral. Although one could argue that the government intended to suppress speech advocating drug use, it seems more plausible to characterize the prosecution as part of a broader effort to stop the manufacture and sale of illegal drugs. Moreover, unlike the *Hit Man* case, *Barnett* did not involve a commercial publisher.[193] The mailing of a Xeroxed instruction manual

185. *Id.* at 842.

186. 572 F.2d 619 (8th Cir. 1978).

187. *Id.* at 628.

188. Brandenburg v. Ohio, 395 U.S. 444 (1969) (per curiam).

189. Hess v. Indiana, 414 U.S. 105 (1973) (per curiam).

190. Watts v. United States, 394 U.S. 705 (1969) (per curiam).

191. With *Hit Man*, by contrast, the publisher sent out into the world at large a book which contained instructions that might be misused but which also contained advocacy and, arguably, entertainment value.

192. Spence v. Washington, 418 U.S. 405, 409 (1974) (per curiam).

193. United States v. Barnett, 667 F.2d 835 (9th Cir. 1982).

from one individual to another does not implicate any of the traditional fora of free speech. Thus, the court might properly have concluded that the instruction manual fell closer to conduct than speech and allowed the criminal laws to operate without First Amendment constraint.

Instead, the *Barnett* court needlessly escaped the First Amendment by treating the answer to the question whether the crime of aiding and abetting was committed as dispositive of the question whether the First Amendment applied.[194] The court did not realize or else ignored the fact that the categories of crime and speech sometimes overlap.

C. Taxes

In *United States v. Buttorff*,[195] by contrast, the court stated the First Amendment issue clearly and seemed to understand that what was at stake was the advocacy of ideas. Unfortunately, the court nonetheless allowed the convictions of the advocates of tax evasion to stand.[196] Pronouncing it "relevant," the court quoted a long passage from a district court decision authored by Judge Learned Hand in 1917.[197] The passage quoted concludes as follows: "If one stops short of urging upon others that it is their duty or their interest to resist the law, it seems to me one should not be held to have attempted to cause its violation."[198] By implication, one might assume then that it would violate the law to urge others "that it is their duty or their interest to resist the law."

Yet modern First Amendment law, as embodied in *Brandenburg*, goes much further and the *Buttorff* court was constrained to acknowledge the existence of more recent Supreme Court precedent contrary to the lengthy excerpt of Judge Hand's reasoning: "More recently, the Supreme Court has distinguished between speech which merely advocates law violation and speech which incites imminent lawless activity. *See Brandenburg v. Ohio* .... The former is protected; the latter is not."[199]

Case closed? Not so fast. The court found that while "the speeches here [did] not incite the type of imminent lawless activity referred to in criminal syndicalism cases, the defendants did go beyond mere advocacy

194. *Id.* at 842–43.

195. 572 F.2d 619 (8th Cir. 1978).

196. *Id.* at 628.

197. *See id.* at 624 (citing Masses Publ'g Co. v. Patten, 244 F. 535, 540 (S.D.N.Y. 1917), *rev'd*, 246 F. 24 (2d Cir. 1917)).

198. *Id.* (citing *Masses*, 244 F. at 540).

199. *Id.* (citation omitted).

of tax reform."[200] The court found it beyond the pale that the defendants actually "explained how to avoid withholding."[201] Apparently, according to the court, a speaker loses First Amendment protection by descending from the realm of airy abstraction and providing listeners with some idea of how to accomplish the goals advocated.

Under the principles outlined in Part II, the court's analysis could not withstand scrutiny. The *Buttorff* defendants were plainly at the speech end of the continuum. For example, under the *Spence* test,[202] one would be hard pressed to conclude other than that the defendants intended to communicate ideas and were understood to be communicating. The court concedes as much. Moreover, the social space involved is paradigmatically one of free speech—speakers standing on a soap box before a large audience, seeking to persuade. The court escaped the First Amendment by interpreting it so narrowly that even what seems archetypal free speech—inspiring a large crowd with one's view of the Constitution—may be freely punished as the crime of aiding and abetting, if the listeners are actually persuaded and later disobey the law.

D. *Natural Born Killers*

That a court allowed a lawsuit to proceed against Oliver Stone because someone imitated a character in one of his movies[203] illustrates the lingering ill-effects caused by First Amendment escape devices. The court was required to accept the plaintiff's factual allegations as true for purposes of a motion to dismiss, but it might easily have relied upon a long line of so-called "copycat" cases and concluded that media defendants cannot be held responsible every time a mentally-disturbed person confuses fantasy with reality.[204] Absent the *Hit Man* decision, the Louisiana court might have found it harder to discount the First Amendment implications of subjecting media defendants to potentially enormous liability for producing a movie that explores violent themes.[205]

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200. *Id.*

201. *Id.*

202. Spence v. Washington, 418 U.S. 405, 409 (1974) (per curiam).

203. *See* Byers v. Edmonson, 712 So. 2d 681 (La. Ct. App. 1998).

204. *See generally* Andrew B. Sims, *Tort Liability for Physical Injuries Allegedly Resulting from Media Speech: A Comprehensive First Amendment Approach*, 34 ARIZ. L. REV. 231 (1992).

205. The lawyer for the plaintiffs in *Hit Man* has conceded as much:

Under the standard proposed in this Article, *Natural Born Killers* easily falls on the speech side of the continuum. First, most people would surely understand Oliver Stone's popular movie as expression. In terms of social space, movies are generally understood as communication, and the local cineplex is widely recognized as a place for artistic expression. In addition, whether or not he intended viewers to commit the crimes depicted, Oliver Stone had no power to coerce the theater-attending public to obey.[206] Any untoward consequences would follow only if he persuaded the audience of the desirability of homicidal behavior.

To the extent the malleability of the initial distinction between speech and crime results from the very inflexibility of current First Amendment doctrine, it might be argued that some such room to breathe is necessary. First Amendment protections must be rigid if they are to weather tides of popular opinion, such as those that have previously swept the court into complicity with censorship, but that inflexibility also has costs. *Brandenburg*'s categorical approach requires courts to fit real-world facts to a Procrustean bed of incitement, gravity, and imminence. Arguably, much of the significance must be chopped away or stretched beyond recognition to meet such an unforgiving standard.

If *Brandenburg* goes too far and overprotects in some situations, some might argue that flexibility concerning the First Amendment's scope allows courts to espouse an absolutist view of free speech while at the same time allowing sensible restrictions. Such a system thereby preserves the First Amendment's symbolic value. Taken to its logical conclusion, this would amount to tacit approval of escape devices. Such arguments have been made in other contexts. For example, Professor Yale Kamisar has suggested a similar compromise regarding physician-assisted suicide: leave it illegal and trust that doctors will ignore the law in the right cases.[207] The cost to such an approach, however, is that it can

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> The *Natural Born Killers* case was a defeat for the First Amendment, and thus a victory for Paladin, enabling it to crow "I told you so." This was precisely what Paladin and its numerous amici in our suit had warned against. We'd claimed they were all Chicken Littles shouting that the sky was falling. But now they can assert that the sky is indeed beginning to fall.

SMOLLA, *supra* note 2, at 265.

206. In any event, unlike the publishers of *Hit Man* who stipulated to intent for purposes of summary judgment, nothing in the court's decision indicates a similar intent on Oliver Stone's part.

207. *See, e.g.*, Yale Kamisar, *Physician-Assisted Suicide: The Problems Presented by the Compelling, Heartwrenching Case*, 88 J. CRIM. L. & CRIMINOLOGY 1121 (1998). Professor

lead to arbitrary results because decision-making is no longer constrained by explicit standards. The outcome of each case depends largely upon the sensibilities of the individual decision-maker.[208] In the case of assisted suicide, that cost may be worth bearing. Unlike doctors, however, courts must articulate a rationale for their decisions. If courts fail to engage openly and honestly with the difficulty inherent in marking the scope of free speech, they will create misleading precedents for future courts.

V. CONCLUSION

The lack of coherent, formal distinctions between First Amendment speech and criminal speech is troublesome, because the categories overlap and courts act with little guidance in deciding when speech is "speech" within the meaning of the First Amendment and when it is crime. Yet courts cannot avoid the question and must somehow decide when speech becomes imbued with enough of the qualities of crime that it falls outside of the scope of the First Amendment. The issue is always whether an utterance in some way connected with crime is simply part of a criminal act or whether it also contains some quality sufficient to warrant treating it as speech.

While the most stringent version of the *Brandenburg* test cannot realistically be applied to all speech, this Article contends that the boundaries of the First Amendment must be drawn by the light of open and honest discourse. Applying the principles that animate the distinction between conduct and expression, rather than just the labels, will help courts to better distinguish between speech and crime. By undertaking the more rigorous analysis involved, courts will more often be able to resist the temptation to use escape devices to avoid the First Amendment altogether.

Kamisar argues by analogy to torture and points out that in some circumstances—for example, to avert an imminent catastrophe—the authorities would resort to torture and society would not complain. *See id.* at 1144–45. Yet, "by refusing to acknowledge that we should balance the costs and benefits of torture as a general matter, we strengthen the presumption against torture and maximize the likelihood that it will only be resorted to in the rarest and most compelling circumstances." *Id.* at 1145.

208. Legal realists and post-modernists argue that judicial decisions, to varying degrees, in fact turn on extra-legal considerations. Those descriptive claims are not generally tied to a normative claim. In other words, realists and post-modernists challenge the existence of law but do not claim that the politically and ideologically driven reality they perceive is a viable alternative. *Cf.* RONALD DWORKIN, TAKING RIGHTS SERIOUSLY 3 (1977) (stating that on a realist account, "judges actually decide cases according to their own political or moral tastes, and then choose an appropriate legal rule as a rationalization.").

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